

statutes in Parliament agreed on, and the laws and customs of the same.-- St. William and Mary, ch. 6. (1688). (emphasis added).

Such act of Parliament subjected former prerogatives of the King to those of the people acting through their Parliament. The SOURCE OF POWER to legislate had thus transferred to the People.

The Supreme Court long ago recognized that the concept that "the king can do no wrong" has no place in our government. Langford v. U.S., 101 U.S. 341.

B. DECISIONS OF THE UNITED STATES SUPREME COURT RELY UPON FLOYD V. BARKER (1607) AND THE CASE OF THE MARSHALSEA (1613), WHICH IS MISPLACED RELIANCE, FOR THOSE CASES AROSE IN THE PERIOD OF TIME ABOVE WHEN THE KING AND HIS COURTS WERE THE LAW, AND THE PEOPLE ACTING THROUGH THEIR PARLIAMENT HAD NOT YET ESTABLISHED THEIR RIGHT TO RULE THE REALM.

At the time of the Case of the Marshalsea and Floyd v. Barker, supra, the English were still in that long and arduous process of wresting from their King his presumed right to reign by "divine" providence. The two cases just mentioned were lifted from English law at a time when the King's word and the word of his Chancellor and of his Justices were the law, and the SOURCE of such power was claimed to be of divine origin. Action commenced against such Chancellor or Justice would clearly be a direct affront upon the King himself, and could not be countenanced! The King was Sovereign. The King was the head of the judicial system of the period. 6 Holdsworth, The Principles of Public Law, p. 208. After 1688, even the Sovereign was subject to the "law of the land" as set by the Parliament. That is, AFTER the two cases cited, the SOURCE OF POWER in England relating to sovereignty shifted to the PEOPLE.

Is it not ironic that the Courts of the United States, with